

Mukesh Srivastav vs Space Applications Centre,Isro on 10 February, 2026

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O.A.No.14/2017

CENTRAL ADMINISTRATIVE TRIBUNAL
AHMEDABAD BENCH
O.A. No.14 of 2017

Dated this the 10th day of February, 2026

Reserved On:14.08.2025
Pronounced On:10.02.2026

CORAM:

Hon'ble

ble Shri Jayesh V Bhairavia, Member (J)

Hon'ble Dr. Hukum Singh Meena, Member (A)

1. MUKESH SRIVASTAV
Aged: 35 years (DoB being 04.06.1981)
Son of Shri Rajendra Bahadur
Presently serving as Technical
chnical Officer "C" Under
Head,SCPD/SEG/SEDA,
SCPD/SEG/SEDA, SAC/ISRO,
Ahmedabad & presently residing at No.D
No.D-10/8 Vikram Nagar,
DoS Colony, Ambli-Bopal
Bopal Road,
AHMEDABAD - 380 058.
2. SUNIL SINGH
Aged: 32years (DoB being 16.07.1984)
Son of Shri Surendra Singh Presently serving as Technical
Officer "C" Under Head,
RFSD/RFSG/SNPA, SAC/ISRO,
Ahmedabad & presently residing at No.D
No.D-10/4 Vikram Nagar,
DoS Colony, Ambli-Bopal
Bopal Road,
AHMEDABAD - 380 058.
3. BINIT KUMAR ROY
Aged: 34 years (DoB being 12.01.1982)
Son of Shri Raghubansh Roy
Presently serving as Technical Officer "C" Under Head,
MSTD/MSTG/MRSA, SAC/ISRO,
Ahmedabad & presently residingg at No.D

No.D-10/5 Vikram Nagar,

DoS Colony, Ambli-Bopal
Bopal Road,
AHMEDABAD - 380 058.

4. JANAKSINH SOLANKI
Aged: 38 years (DoB being 14.06.1978)
Son of Shri Gopalsinh Solanki
Presently serving as Technical Officer "C" Under Head,
AD/RFSG/SNPA, SAC/ISRO,
Ahmedabad & presently residing at No.D
No.D-4/11,
Vikram Nagar,
DoS Colony, Ambli-Bopal
Bopal Road,
AHMEDABAD - 380 058.

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5. HIRENKUMAR RAVJIBHAI PITHVA
Aged: 36 years (DoB being 28.11.1980)
Son of Shri Ravjibhai Ghelabhai Pithva
Presently serving as Technical Officer "C" Under Head,
PPMD/PPG, SAC/ISRO,
Ahmedabad & presently residing at No.D
No.D-10/1 Vikram Nagar,
Ambli-Bopal Road,
AHMEDABAD - 380 058.

... Applicants

(By Advocate: Shri M.S.Rao)

Versus

1. UNION OF INDIA
(To be represented through its
Secretary to the Government
Government of India,
Department of Space, Government of India,
Antariksh Bhavan, New BEL Road,
BANGALORE - 560 231).
2. SPACE APPLICATIONS CENTRE
(Through its Director,
Space Applications Centre,

Department of Space,
Govt. of India, Satellite,
AHMEDABAD - 380015)

3. THE SECRETARY TO THE GOVERNMENT OF INDIA,
Department of Expenditure,
(Implementation Cell)
Ministry of Finance, Govt. of India,
North Block, NEW DELHI - 110 001.
4. THE SECRETARY TO THE GOVERNMENT OF INDIA,
Department of Personnel,
Ministry of Personnel, Training & Pensioners' Grievances,
Govt. of India, North Block,
NEW DELHI - 110 001. Respondents

(By Advocate:Ms.R.R.Patel)

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O.A.No.14/2017

ORDER

Per : Hon'ble Dr.Hukum Singh Meena, Member (A)

1. Being aggrieved by the order orders No.E.19012/2/2006-V V dated 03.02.2006, No.E.19012/2/2006 E.19012/2/2006-sec.V dated 08.09.2006, .2006, No.A.12013/2/2011 I dated 30.01.2016, Nil dated 11.04.2025 No.A.12013/2/2011-I and Nil dated 11.04.2025, the applicants filed this Original Application under Section 19 of the Administrative Tribunal Act Act., 1985 seeking following relief:-

relief:

"A. A. call upon the official respondents herein to forthwith place before this Hon'ble Tribunal the entire original files/documents, ments, etc. which gave rise to the issuance of the (i) impugned Office Memorandum bearing No.E.19012/2/2006-V V dated 03.02.2006 at Annexure Annexure-

A/1 hereto, (ii) impugned Office Memorandum bearing No.E.19012/2/2006-sec.IV sec.IV dated 08th September 2008 at Annexure-A/22 hereto and (iii) impugned Communication bearing No.A.12013/2/2011 No.A.12013/2/2011-1, dated 30.01.2016

at Annexure-A/3A/3 hereto; B. upon perusal of the same, be further pleased to quash and set aside the (i) impugned Office Memorandum bearing No.E.19012/2/2006- V dated 03.02.2006 at Annexure-A/1 A/1 hereto, (ii) impugned Office Memorandum bearing No.E.19012/2/2006 No.E.19012/2/2006-sec.IV dated 08th September 2008 at Annexure Annexure-A/2 hereto and (iii) impugned Communication bearing No.A.12013/2/2011 No.A.12013/2/2011- I dated 30.01.2016 at Annexure Annexure-A/3 hereto, in so far as these impugned documents seek to mete out an arbitrary, unreasonable and discriminatory treatment to the applicants herein by depriving them of their legitimate right to choose the career path of their liking, at par with those direct recruits in the cadre of Technical Assistants "B" (Electronics) who were selected and recommended by the very same Selection Committee in pursuance of the very same Advertisement No.SAC:04/2004 and could join the services of the SAC before 31.03.2006 solely because of the issuance of Offers of Appointments prior in point of time;

B-11 quash and set aside the aforesaid 5 unnumbered communications all dated 11.04.2025 at Annexure Annexure-

A/3(a), Annexure-A/3(b), A/3(b), Annexure Annexure-A/(c), Annexure-

A/3(d) and Annexure-A/3(e) A/3(e) hereto, holding and declaring that (a) the decision of the respondents conveyed through the aforesaid impugned unnumbered communications dated 11.04.2025 is without any competence power and authority in view of the express 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' statutory provisions contained in sub section (4) of Section 19 of The Administrative Tribunals Act, 1985 and that (b) even the reasons / grounds set out in the paragraph 4(i), (ii), (iii) & (iv) of the aforesaid impugned document dated 11.04.2025 is ex facie arbitrary, unreasonable, discriminatory there thereby violating the applicants' fundamental rights conferred in Articles 12, 14 and 16 of the Constitution of India. C. issue appropriate directions commanding the respondents herein to forthwith extend to the applicants herein the very same treatment extended to those direct recruits in the cadre of Technical Assistants "B"

(Electronics) who were selected and recommended by the very same Selection Committee in pursuance of the very same Advertisement No.SAC:04/2004 and could join the services of the SAC before 31.03.2006, by permitting the applicants herein to exercise an option for choosing career path at par with those who had joined the services on or before 31.03.2006 (in pursuance of the very same Advertisement No.SAC:04/2004), in pursuance of the provisions contained in the impugned OMs dated 03.02.2006 and 08.09.2006 at Annexure-A/1 A/1 hereto and Annexure Annexure-A/2 hereto, together with all the consequential benefits flowing therefrom including the consequent retrospective promotions, increments, arrears of pay, etc., with interest thereon at the rate of 12% p.a. D. impose an exemplary cost of Rs.50,000/ Rs.50,000/- on the respondents herein for compelling the applicants herein to resort to this avoidable litigation.

litigation."

2. Brief facts of the case of the applicants are as under:-

2.1 The applicants are presently working as Technical Officers "C" in the Space Application Centre, (hereinafter Officers-

referred to as SAC) Ahmedabad. They were recruited to the post of Technical Assistants "B" (Electronics) with reference to Advertisement No.SAC:04/2004 on 01.10.2004 carrying 5th the Advertisement CPC pay scale of Rs.5000-150--8000/-, consequently being selected for the post of SSE Ahmedabad Ahmedabad, the he applicants were recommended by the Selection Committee of SAC, Ahmedabad which was held from 29.08.2005 and 06.09.2005. Subsequently all the applicants were appeared in the interview Board on the scheduled date and time. It appears that aforesaid Selection Committee after holding interview between 29.08.2005 to 06.09.2005 recommended for appointment of 20 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' candidates for general candidates; 10 candidates (belonging to the OBC category) and 5 candidates (belonging to the SC category), for appointment to the post of Technical Assistant "B" (Electronics) including the applicants herein.

2.2 It was stated that the SAC Ahmedabad issued offer letter to 15 candidates, candidates out of the aforesaid recommended candidates according to their wishes and whims without following the order of merit. They had also placed on record a copy of said offer of appointment bearing No.SAC:RMT:PER SAC:RMT:PER:06:2006 :06:2006 dated 19.01.2006 and No.SAC:RMT:PER:41:2006 No.SAC:RMT:PER:41:2006 dated 20.02.2006 issued in respect of Shri Thummar Chaitanya Mansukhlal and one Ms.Patel Bhavika Virambhai respectively while their final order of SAC No.7808/2006 dated 06.02.2006 which issued out of the recommended candidates SAC Ahmedabad had offer offered and appointed appoint Seven candidates by 31.03.2006 whereas offer letter of appointment to the applicants herein for the SAS Ahmedabad had been issued in April, 2006 and May 2006 respectively. After completing the formalities with reference to the applicants herein a formal appointment letter issued on 28.06.2006 in in respect of the applicant Nos.1 and 2 with reference to the applicant Nos.3 & 4 on 28.05.2006 and 04.05.2006 and an in respect of applicant No.5 dated 28.06.2006 respectively. Pursuant to aforesaid offer of appointment, the applicants herein had joined service at SAC, Ahmedabad on 12.06.2006 (No.1 & 2),

2) 03.04.2006 (3 & 4) and 05.06.2006 (No.5) respectively.

2.3 It is further submitted that all the aforesaid recruitments including the applicants herein had joined service at SAC, Ahmeda Ahmedabad and a decision was taken by the DoS with the approval of the President of India that the Department of Space interalia alia would grant the pay scale of Rs.5500-9000/- as the he induction grade in the cadre of Scientific/Technical Assistants 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' "B", which would be evident from the Office Memorandum No.E.19012/2/2006 V dated 03.02.2006 which was further No.E.19012/2/2006-V clarified by another office Memorandum Memorandum No.2/9/2/2004 No.2/9/2/2004-I/(Vol.II) I/(Vol.II)

dated 08.02.2006 (Annexure-/25) (Annexure /25) whereby inter alia the post of Technical Assistant "B" came to the re re-designated post as 'Technical Technical Assistant Assistant' with immediate effect. The aforementioned order was further modified vide Office Memorandum No.2/9/2/2004 I/(Vol.II) No.2/9/2/2004-I/(Vol.II) dated 08.02.2006 (Annexure (Annexure-/25) whereby it was directed that Technical Assistant Group "B" Officers in the Scale of Rs.5000 Rs.5000-8000 8000 on 31.03.2006 who had been inducted into the main stream either through direct recruitment recruitment or promoted through special review process on acquiring higher qualifications would be placed in the higher pay scale of Rs.5500-9000 Rs.5500 9000 w.e.f. 01.04.2006 and that the fixation of pay in such cases might be done in terms of FR23 and FR 23(I) A(2).

2.4 It was further clarified vide the said Office Order dated 19/21--12-2006 2006 that after their placement in the higher scale as indicated in the said Officer Order would be eligible for next promotion to the post of Technical Assistant C /Scientific Assistant C as per the existing residency period and existing procedure. In respect of those candidates who had joined the services of the SAC/ISRO S /ISRO Ahmedabad after 01.04.2006 viz. the applicants herein, the SAC Ahmedabad had also so issued on the very same date an Office Order No.SAC/EST/3.34/2006 dated 19/21/12/2006 (Annexure-/28) (Annexure whereby the said candidates were granted higher scale of Rs.5500 - 9000 w.e.f from the date as mentioned against their name. The Department of Space/ Space/ISRO had issued another other office memorandum dated No.E--29011/1/2008 -sec sec V(I) dated 12.11.2010 stating that the laboratory assistant who had been inducted with the Department of Space or ISRO between 01.01.2006 and 31.03.2006 would be assigned the grade pay of Rs.4200/ Rs.4200/- in 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' the pay band of Rs.9300-34800/ 34800/- from the date of their induction their initial pay would be fixed as provided in Section induction;

II of Part A of the First Schedule of CCS (RP) Rules, 2008. The grade pay of such Scientific/Technical/Library Scientific/Technical/Library Assistants would be upgraded to Rs.4600/-

Rs.4 w.e.f. 01.04.2006 and on up up--

gradation, such Scientific/Technical/Library A Assistants ssistants would be revised to higher grade pay of Rs.4600/ Rs.4600/- w.e.f. 01.04.2006,, keeping the pay in the pay band unaltered. Therefore, as a result of the aforesaid OM dated 12.09.2008 and subsequent OM dated 12.11.2010 issued by the DoS, the erstwhile 5th CPC pay scale of Rs.5500-9000 Rs.5500 9000 as on 01.01.2006 for the post of Technical Assistants B revised to the PB PB-2 of Rs.9300-34800/--

with a Grade Pay of Rs.4600/-

Rs.4600/ w.e.f. the respective date of their joining.

2.5 Further, it was mentioned that those six candidates who had joined the services of the SAC, Ahmedabad before 01.04.2006 in pursuance of the same selection initiated by means of SAC's Advt No.04/2004 had grievance before the respondents herein that the SAC SAC Ahmedabad had fixed the basic pay of those candidates who had joined after 01.04.2006 i.e the applicants herein had been

fixed at Rs.17,140/ Rs.17,140/- as against their basic pay of Rs.13,900/ Rs.13,900/-.

2.6 It is pertinent to mention that the applicants who had joined the SAC Centre before 01.04.2006 had been granted first promotion and re-designated re designated on the post of Sr.Gra Sr.Grade de post after completion of the respective period of three years. The applicants herein though they were recruited through the very same batch in pursuance of the very same advertisement No.SAC:04/2004, were granted the said promotion after their completion of four years of residency period as per the new career path envisaged under OM dated 03.02.2006 and 08.09.2006 which are under challenge in the present Original 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' Application whereas the candidates who had joined SAC, Ahmedabad before 01.04.2006 had been given same promotion in a period of 3 years.

2.7 It was elaborated that m mere ere perusal of the above provision, it is clear that the provisions as stated hereinabove in the two OMs dated 03.02.2006 and 08 08.09.2006, they had d created two classes of same batch officers as far as career progress and roles and responsibilities are conce concerned rned in the SAC,, Ahmedabad working under ISRO, Department of Space.

2.8 The applicants further stated that the aforesaid six aggrieved persons had had approached this Tribunal in OA No.228/2015 challenging the propriety, legality of the D DoS oS OM dated 08.09.2006 to the extent that it restricted the grant of enhanced pay scale of Rs.5500-9000 Rs.5500 9000 to the applicants herein only who had joined after 01.04.2006. Consequently, Office Order dated 19/21.12.2006 (c), DoS OM dated 12.10.2010 to restrict the grant of grade pay of Rs.4600 to the applicants herein only with the rider that the applicants herein would not have option to get their pay fixed un under der Rules of CCS (RP) Rules 2008.

2008 It was also stated that tthe he argument of the applicant were not acceptable that the provisions of the applicants aforesaid OM dated 03.02.2006 were not applicable to the Scientific or Technical Assistants Assistan who had joined on or after 01.04.2006 1.04.2006 as it was available to the candidates in the cadre of Assistant/Scientist/ Library Assistant who had joined on 31.03.2006. It was wa prior to their argument that the provisions of the aforesaid Office Memorandum Memorandum was applicable to the Scientific/Technical Assistants on that date however, it was explicitly clear that the aforesaid Office Mem Memorandum orandum was issued on 03.02.2006. However, iitt was made applicable from 31.03.2006.

.2006. Therefore, the Technical Assistant/Scientific Assistant who were joined between 03.02.2006 and 31.03.2006 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' were given the benefit. In this case why the similar benefits should ould not have been extended to the candidates who had joined in April and June 2006?

3. Learned counsel for the applicant mainly submitted as under:

under:-

3.1 It is submitted by the applicant that the Technical Assistants "B" (Electronics) recruited in pursuance of the Advertisement No.SAC:04/2004, joined prior to 01.04.2006 even though the applicants herein came to be recruited and appointed as Technical Assistants "B" (Electronics) along with the above persons in pursuance of the very same Advertisement No.SAC:04/2004..

Advertisement As per the provisions laid down in para 6.2 to 6.4 of the impugned OM dated 08.09.2006, Department of Space are discriminatory in the sense that it ensures faster career progression for the officers who had joined before 31.03.2006 than the Scientific/Technical Assistants joined on or after 01.04.2006 although they had been selected, recruited and appointed on the basis of same advertisement No.SAC:04/2004 which is discriminatory and violation of basic provisions of Article 14, 16 and 29 of the Constitution of India. Counsel stated that initially applicants herein were of the impression that there are two separate groups who had joined prior to 01.04.2006 and joined on/after 01.04.2006. Therefore they had not questioned the propriety, legality and constitutional validity of the aforesaid OM issued by the Department of Space.

3.2 It was also submitted by the applicant that after clarification issued by Department of Space dated 30.01.2016 (Annexure A/3) they were made aware that differential treatment given to aforesaid two groups although they had been selected and recruited to the same post. They had further stated that the applicants herein form part of those recommended by the very same Selection Committee which had conducted interviews for the post of Technical Assistant "B" (Electronics) between 29.08.2005 and 06.09.2005. Therefore based on the above fact the applicant further submitted that the cutoff date for implementation of the aforesaid mentioned OM dated 03.02.2006 and 08.09.2006 given differential treatment to aforesaid two groups which was ex facie, arbitrary, unreasonable, unfair and discriminatory thereby violating the applicants' Fundamental Rights guaranteed by the Articles 14 and 16 of the Constitution of India.

3.3 It was further mentioned by the applicants herein that career progression paths were defined for both the groups who had joined prior to 01.04.2006 and after 01.04.2006 and according to new career paths had submitted that applicants herein had joined after 01.04.2006 would never go beyond the promotion to the post of Technical Officer 'SG' after 32 years of service in the new career path. In contrary, those particulars of Technical Assistants Group B (Electronics) who had joined the service of SAC prior to 01.04.2006 in pursuance of the same advertisement No.SAC:04/2004 would reach the cadre of Scientist Engineer SG having the same pay scale as Technical Officer "SG" within a span of 24 years. Moreover, the aforesaid noteworthy feature in the present case is the treatment of the applicants herein as a Supportive Staff to those aforesaid favoured lots merely because the aforesaid favoured lots could join the services of SAC prior to 01.04.2006. They had also referred the sub Section 4 of section 19 of the Administrative Tribunal Act 1985 whereby it is laid down that when the OA is admitted by this Tribunal, then the respondent authority should not decide the pending representation. However, the Department of Space/Space Application Centre Ahmedabad decided their representation on 11.04.2025 after OA had been

2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' admitted. Therefore Therefore, the applicant prayed that the communication of the Department of Space communicated vide letter dated 11.04.2025 deserves to be quashed and set aside.

3.4 It is also relevant that during the pendency of the OA, DoS and SAC, Ahmedabad should not have taken decision on their representation. Therefore, they challenged to the very propriety legality and the constitutional validity of the decision communicated by Respondent No.2. Therefore, on the basis of the above facts, their Original Application deserves to be considered on the following grounds:

3.5 That the applicants herein and their colleagues submitted and the applicants herein were appointed as Technical Assistant B (Electronics) in pursuance of the Advertisement Assistant No.SAC:04/2004 and had joined prior to 01.04.2006 and on/after after 01.04.2006 o due completion of pre pre-requisite joining service which was beyond the control of the applicants herein.

As per er the provisions laid laid down in para 1.6 impugned OM dated 03.02.2006 and those in paragraphs 6 6.2 .2 to 6.4 of OM dated 08.09.2006 submitted by SAC are discriminatory since it faster 08.09.2006 career progression path for the officers who had joined prior to 01.04.2006 and provided slower career progression path, Those who had joined on or after 01.04.2006 although they had been selected, selected recruited and appointed on the basis of same advertisement No.SAC:04/2004 which was s discriminatory and violation of basic provisions of Articles 14, 16 and 19 of the Constitution of India.

3.6 The he applicants herein were in the impression that there are two separate groups of those who had joined prior to 01.04.2006 and those who had joined after 01.04.2006 are different and distinct from each other going by the differential salaries between these two groups. Although they had been selected and recruited to the organization and there was no 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' violation of any guidelines of the same benefits of pay were extended to the applicants herein who had joined the service of SAC after 01.04.2006 because it is a fact that all the app applicants licants herein informed part of recommended candidates by the very same selection committee which had conducted the interview for the post of Technical Assistant (B) between 2 29.08.2005 9.08.2005 to 06.09.2005. Therefore based on the above fact, he further submitted that the cutoff date for implementation of the afore mentioned OM dated 03.02.2006 and 08.9.2006 given differential treatment as per career to aforesaid two groups which is ex facie, arbitrary,, unjust, unreasonable, unfair and discriminatory thereby violating the applicants Fundamental Rights guaranteed by the Articles 14 and 16 of the Constitution of India.

3.7 The applicants herein had also submitted the Chart of their career progression path for both the groups groups, Group A who had joined before 31.03.2006 and Group B (applicants herein) who had joined on or after 01.04.2006 01.04.2006. According to the policy of career path in vogue, they t had submitted that the applicants herein who had joined on/after fter 01.04.2006 would n never ever go further than Technical Officer "SG"" after 32 years of service in the career path in comparison of those particularly Technical Assistants, "B" (Electronics) who had joined the service

at SAC prior to 01.04.2006 in pursuance of the very same advertisement No.04/2004 whereby whereby, they would reach their cadre of Scientist S Engineer "SG SG" on the basis of Technical promotion having the same pay scale as Technical Officer SG within a span of 24 years.

3.8 It was further contended that the aforesaid noteworthy future career in the present case is that the applicants herein would function as a supportive staff to those aforesaid favored lots merely because the aforesaid favoured lots could join the 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' services of SAC prior to 01.04.2006. Therefore applicants herein prayed that the communication of the DoS communicated vide letter dated 11.04.2025 may be set aside communicated which cannot stand in the eye of law law. It was s a case of the applicant that those candidates including the applicants herein applicants were selected and appointed as Scientific Assistant B in pursuance off the aforesaid very same advertisement No.SAC:04/2004 but joined after 01.04.2006. T Therefore it was not viewed as the parity given by DoS OM dated 03.02.2006 and 08.09.2006 which is also discriminatory since that stipulates two career path for technical promotion on the same Group of persons on the basis of cut cutoff of joining the service date ate and not on the basis of merit which deserves to be set aside.

4. Per contra, the respondents filed the reply and had denied the averments made by th the e applicants herein and further submitted that the Respondent No.4 herein i.e., Space Application Centre Ahmedabad, Indian Space Research Organization (ISRO) is a Government Organization under the DoS engaged in research and development in the field of Space Technology and its applications for the Socio Socio-Economic Economic development elopment of the Nation. Under the Government of India (Allocation of Business) Rules, 1961 1961, Department of Space had been given full powers with regard to all the matters relating to the personnel under the control of the Department (Annexure (Annexure--

R1).

4.1 Counsel sel for the respondents further submitted that like the other ot Central Government Departments, DoS had certain special powers and privileges by virtue of a Presidential Notification issued on 18.07.1972 duly amending the Government of India Rules, 1961 whic which h empowers the Department to formulate all matters related to the personnel 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' under its control including the norms/rules for recruitment and promotion of the employees. The Department is also exempted from consultation with UPSC in matters related to recru recruitment itment vide another Notification dated 11.11.1974. ISRO was converted from an autonomous body into a Central Government Organization under the DoS from 01.04.1975.

4.2 Counsel for the respondent contended that a after fter becoming Central Government Organizati Organization, the first set of orders rs on career opportunities for S Scientific cientific and Technical staff was issued by ISRO Headquarters vide OM No.HQ:ADMN:4.20(3) dated 12.12.1975 effective from 01.01.1976. The promotion of Organization at different staff in ISRO is governed by Merit Promotion Scheme Scheme.. Considering the limited career progression available to the Technical Assistants with first class in Diploma and who could not progress in Scientist/Engineer stream, additional grades had been created in ISRO vide OM No.2/ No.2/13(5)/89-i(vi) i(vi) dated

18.03.1991. The selection process is based on merit alone and is aimed at identifying the really meritorious candidates.

4.3 The DoS/ISRO personnel recruited recruited/promoted /promoted as

Scientist/Engineers with Degree or Diploma in engineering or Degree in science were considered in the common review system, till February, 2006. Therefore, according to the old mode or common review for promotion in Scientific/Engineer stream, majority of the Diploma/B.SC holders was experiencing slower progress of career growth. Taking into account the role played by them in fulfilling the objectives of the organization, and in order to address some of the issues relating to career opportunities for Scientific/Technical personnel, the Department of Space constituted a Committee under the Chairmanship of Dr.B.N.Suresh, r.B.N.Suresh, the then Director, VSSC to review and recommend improvement of career opportunities for scientific c 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' and technical personnel in DoS/ISRO.

DoS/ISRO. The recommendation made by the Committee had been considered by the Department taking into consideration of the relevant aspects, with the approval of the President of India, O. M. No. E.19012/2/2006 E.19012/2/2006-V dated 3-2-2006 2006 was issued prescribing separate career progression paths for Scientific/Engineers /Engineers working in core area, area, Doctors working in Medical and Health area, Officers working in Documentation and Library area, separate cadre for Diploma/B. Sc. Holders and Category Change Merit Selection Scheme, based on the rationale of qualification. In terms of the above OM, the induction grade of the then existing Scientific /Technical Assistant Assistant-B has been enhanced from Rs.5000-8000/-

Rs.5000 to Rs. Rs.5500-9000/- .

4.4 Counsel for the respondents submitted that the Diploma/B.Sc., Diploma/B.Sc., holders had the career progression to Scientist/Engineer stream stream till then, (i. e. up to 3 3-2-2006), 2006), the

existing Technical Assistants who had been in the role s of ISRO on the date of issue of the above O. M. had been given an option to switch over to the newly created career path prescribed in para 6.1of the O. M. dated 03.02.

03.02.2006.

2006. Those who did not opt for the newly created path can continue to progress in the existing stream i.e. in Scientist/Engineer cadre. It is worthwhile to submit here that the option to continue in

the existing stream or to switch over to the new career path was available only for the existing Technical/Scientific Assistant on the date of issue of the OM. Para 6.2 and sub para (c) of para 6.4 of OM No.□19012/2/2006-Sec.IV No.□19012/2/2006 Sec.IV dated 8 8-9-2006, 2006, also stipulates that the above procedure would not be applicable for the new recruits inducted on or after 01.04.2006. Further, on implementation of the 6th CPC, the Technical Assistants/Scientific Assistants joined ISRO on or after 1 1-4--

2006, had ha been placed in the higher grade pay of 4 4600/- from the existing GP of Rs.4200/-.

Rs.4200/ 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' 4.5 It was relevant that the all five applicants in the OA were appointed in SAC/ISRO Technical Assistant 'B' in the scale of pay of Rs.5000-150- Rs.5000 8000/- (5th CPC) in April to June 2006. Those Technical Assistants who who had joined on or after 01.04.2006 had to progress in the newly created career path as per stipulations contained in DOS OM dated 03.02.2006 read with DOS OM dated 08.09.2006. In the case of those Technical Assistants existing as on the date of issue of the aforementioned OM, an option was available to continue in the old career progression path or to switch over to the new career path defined in terms of the ibid OM. Out of the 06 Technical Assistants appointed from the same advertisement belonging to the same select panel, one Technical A Assistant had undergone the special review process and was promoted to the post of Scientist/Engineer SC. Further career progression in respect of Scientist/Engineer-SC.

such candidates will be in the Scientist Scientist/Engineer stream only.

4.6 All the five applicants had been appointed in SAC/ISRO on or after 01.04.2006 and all of them ha have to progress in the revised career path i.e. from Technical Assistant to Sr. Technical Assistant 'A' and to the next higher grade of Technical Officer-C Officer and are drawing awing the grade pay of 5400/ 5400/--

(PR). As per the revised career path, the career progression of the Technical/Scientific Assistants is available upto Sci./Technical Officer 'SG' (upto level 13A of Pay Matrix in 7th Pay Commission Scale of Pay in CCS Revis Revised ed Pay Rules 2016) within a span of 33 years of service in ISRO. The Technical Officers-C Officers C cannot compare career progression of their cadre with that available to the Scientist/Engineer cadre as the educational qualification, skill required, nature of work work,, duties, responsibilities etc. of both the cadres are entirely different.

2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' 4.7 Learned counsel for the respondent had also filed formal objection to make the Department of Expenditure as s Respondent No.3, No.3 Secretary DP & PW, New Delhi as Respondent No.4 who were not directly concerned with the subject matter of the case under the Government of India (Allocation of Business) Rules, 1961.

4.8 ISRO being a R&D Organization and considered as a sensitive Department, Department the candidates selected/empanelled for appointment ointment in the organization are not appointed straight away. Before sending the offer of appointment appointments to the selected candidates, their character and antecedents are verified. Various arious ongoing Projects/Programmes of

SAC/ISRO require deployment of urgent manpower as soon as the Character and antecedent verification is done, offer of appointment is issued to the candidates concerned irrespective of their merit position in the panel.

panel. In respect of S&T personnel in ISRO as promotion is based on merit and not on seniority seniority,, promotion is not linked with availability of vacancy of promotion. The same post is upgraded on promotion under Merit Promotion Scheme.

4.9 Counsel for the respondents further mentioned that after all the 15 candidates who were empanelled for the post of Technical Assistants Assistant were issued offer of appointment as and when their C&A verification reports were recovery.. In this regard, it is also worth mention that in the Merit based promotion system followed for the sci./Tech. Personnel in ISRO, all candidates who are completing the prescribed minimum residency period are considered for promotion to the eligible higher grades and if recommended for promoti promotion on by the duly constituted DPC, the post held by them are upgraded to accommodate the promotion.

promot 4.10 The Applicants Nos.. 1 to 5 ha had joined the organization (SAC/ISRO), Ahmedabad on 12-06 12 06-2006, 12-06-2006, 03-04--

2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' 2006, 03-04-2006 03 and 05-06-2006 2006 respectively. The new career path prescribed vide OM No. E.19012/2/2006 E.19012/2/2006-V V dated 03-02 02- 2006 is squarely applicable to them to progress in their career and not the career path which existed prior to their appointment in SAC (ISRO).

ISRO). It is also pertinent to submit that the new career path for the Scientific/Technical/Library Assistants has been created to address the issue of the slow career progression of the Scientific/Technical/Library Assistants in ISRO.

4.11 On implementation on of the policy vide O. M. dated 08 08-09--

2006, all the then Technical Assistant Assistant-B B who were on the rolls of ISRO have been re-

re designated as Technical Assistant in the scale of pay of Rs. 5500-9000/-

5500 with effect from 1
1-4-2006.
2006. The

fixation of pay in such cases

cases was exercised in terms of FR 23 and FR 22(1) (a) (2).

4.12 Counsel for the respondents mentioned that all the five applicants in the OA had joined SAC, ISRO in the months of April and June, 2006 i.e., after the issue of the OM. Therefore the claim for not giving the opportunity to choose the career path th existed as on 03.02.2006 i.e., the date of issue of the OM, had no substance and is completely baseless. Subsequently Subsequently,,

modification issued vide OM No.19012/2/2006 Sec Sec-V V dated 08.09.2006, under sub-para (c)) of para 6.4 , it was clarified that the procedures enumerated under the heading of separate cadre for Diploma/B.Sc holders would not be applicable to the recruits inducted on or after 01.04.2006 since all the applicants had been appointed after issue of OM dated 03.02.2006, in their case the revised career progression path would be applicable.

4.13 Counsel for the respondents further contended that based on the recommendation of Dr.B.N.Suresh Committee, Department vide OM No.E No.E-19012/12/2/2006-V V dated 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' 03.02.2006 read with OM dated 08.09.2006 revised induction level and career progression path for Scientific / Technical /Library Assistants in DoS/ISRO w.e.f. 01.04.2006. Accordingly, all the existing Scientific/Technical Libr Library ary Assistants in the pre-revised pre revised scale of pay of Rs.5000 Rs.5000-8000 8000 as on 31.03.2006 were placed in the higher scale for pay of Rs.5500 9000.

Rs.5500-9000. Subsequently, on implementation of the recommendations of VI Central Pay Commission w.e.f. 01.01.2006, .2006, the Department of Space had assigned a common GP of Rs.4200/-

Rs.4200/ to Scientific/Technical and Library Assistants in the pre-revised pre revised scale of Rs.5000 Rs.5000-8000.

8000. Subsequently, this was revised/upgraded to 5500-9000/ 5500 9000/- w.e.f. 01.04.2006.

4.14 Learned counsel for the respondents have also clarified that the assignment of Grade Pay of Rs.4200/ Rs.4200/- and 4600/- to the personnel in the Scientific/Technical/Library Assistant category had been examined by the Department and after taking into account all the relevant factors, it was decided that the Scientific/Technical/Library Assistants who were inducted in DoS/ISRO between 01.01.2006 and 31.03.2006 is to be assigned the grade pay of Rs.4200/ Rs.4200/- and their pay had been upgraded to Rs.4600/-

Rs.4600/ w.e.f. 01.04.2006, keeping the pay in the pay band and unaltered.

unaltered. On their up up-gradation gradation from the GP of Rs.4200/ to Rs.4600/- Scientific/Technical/Library Assistant Rs.4200/-

would not have an option to get their pay fixed under Rule (5) of CCS (RP) Rules, 2008. However, Scientific/Technical/Library Assistant who were inducted in DoS/ISRO Assistants on or after 01.04.2006 had been assigned Grade Pay of Rs.4600/ Rs.4600/- in the pay band of Rs.9300-34800/-

Rs.9300 from their date of induction and their initial pay was fixed as provided in Section Section-II II of Part A of the First Schedule of the CCS (RP) Rules, 2 2008.

4.15 It was stated that after perusal of the above fixation of pay of existing Scientific/Technical/Library Assistant Assistantss as mentioned 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' in the e preceding paragraph resulted in an anomalous situation wherein the juniors who have joined ISRO on or after 01.04.2006 .04.2006 were offered a higher induction level pay as recommended by the 6th CPC vide Section Section-II II of Part A of the First Schedule of the CCS (RP) Rules, 2008. Moreover, as per the provisions in the OM dated 03.02.2006 read with OM dated 08.09.2006 an option optio was given to the then existing Scientific/Technical/Library Assistant either to progress in the existing career path or to switch over to the new Scheme and the same cannot be claimed as a matter of right by the Technical Assistants who were appointed on or after 01.04.2006. Therefore there ws no substance in the claim of the applicants that the Technical Assistants who had been empanelled from the same advertisement had been promoted as per the then existing norms and in their case their promotion effected cted with the revised norms.

4.16 The issue of upgradation of pay was also clarified on that the Technical Assistants who were appointed during 01.01.2006 and 31.03.2006 filed an OA No.228/2015 before this Tribunal with a prayer to upgrade their pay w.e.f. 01.01.2006. Meanwhile, in the meantime, in order to address the anomaly in the pay of Technica Technicall Assistants the Department of Space had decided to step up the pay at par with their juniors vide OM No.A.12013/2/2011-1 No.A.12013/2/2011 1 dated 30.01.2016 especially for the Scientific/Technical/Library Assistant who were required to opt on or before 31.03.2006 in the ISR ISRO establishment.

4.17 Further, it wass submitted that tthe anomaly in the pay of those Scientific/Technical/Library Assistant joined between 01.01.2006 to 31.03.2006 vis-à-vis vis vis their juniors joined on or after 01.04.2006 was corrected by stepping up of pay treating it as a pay anomaly. However, technical assistants who had joined on or after 01.04.2006 could not claim career 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' progression at par with those Scientific Scientific/Technical Assistants who had joined on n or before 31.03.2006 as per guidelines issued by DoS vide OM dated 08.09.2006

4.18 Counsel for the respondents also clarified that stepping up of pay those who had joined before 31.03.2006 on the basis of homogenous group would not automatically make oth other er group eligible for the same promotional avenues available to those who had joined on or before 31.03.2006 as these two are, separate and independent aspects altogether. They also referred many guidelines and office memorandums issued by the Government of India wherein it is clearly defined that for extending of benefits of financial up up-gradation, gradation, a cutoff date is always given. They have reported the example of switch over of employee from OPS to NPS Scheme where a cutoff date for joining the service was was given as 01.01.2005.

5. The applicants have also filed rejoinder reiterating the averments made in the OA.

5.1 In addition to that they had also challenged the affidavit filed on behalf of Department of Expenditure and DoP& DoP&T. T. They had also objected to the reply of the respondent that the Department of Space being one of the departments of Government of India, it is governed by the circulars, guidelines, Government OMs issued from time to time by the DoP&T as also b by y the Department of Expenditure. Itt is also a fact that all the personnel whether it be technical or scientific or administrative, are all governed by the rules framed by the President of India such as

CCS (CCA) Rules, CCS (Conduct) rules, CCS (Pension) Rules, CCS (Leave) Ru (Pension) Rules, CCS (Revision of Pay) Rules etc. They also counter countered that hat the claim of the respondent herein i.e., selection process is based on merit alone and it is aimed at identifying th thee really meritorious candidates (who joined before 31.03.2006) then there is no 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' reason as to how and why the applicant Nos.2, 3 and 4 herein who had secured higher merit position than those six candidates referred in the OA, can be put in an disadvantageous position solely on tthe e ground that those six candidates had joined joined the services of the department before the cutoff date of 01.04.2006. They also prayed that the applicant herein and all other candidates who were required to pass through the same selection process had joined before 01.04.2006 should be treated as homog homogenous enous group and same set of rules should be applicable to both the groups.

5.2 The applicant further submitted that the aggrieved persons had approached this Tribunal in OA No.228/2015 in MA 2015 challenging arbitrary, legality of the Do DoS OM dated 08.09.2006 challenging the provisions tthat 08.09.2006 hat the aforesaid OM restricted to grant enhancing pay of Rs.5500 Rs.5500-9000/- to the applicant herein the applicants who joined on on/often 01.04.2006 w.e.f. 01.04.2006.

5.3 The applicant further submitted that office order dated 19/21.12.2006 OM dated 12.10.2010 restricting grant of GP of Rs.4600/ to the applicants herein only w.e.f. 01.04.2006 with Rs.4600/-

retrospective effect that the applicants would not have option to get their their pay fixed under Rule 5 of CCS (RP) Rules, ules, 2008;

consequently pay fixation order and the communication dated 21.12.2011 issued by the SAC Ahmedabad taking a stand for the applicants herein who had joined service of G GP 4200 00 or after 01.01.2006 . They were not eligible for stepping up of th the e pay ay with reference to the pay of junior direct recruitment appointed on or after 01.01.2006. During the pendency of the aforesaid OA, the DoS had issued another clarification amended to the pay anomalies vide their OM No.E.12013/2011/I/IV dated 30.01.2 No.E.12013/2011/I/IV 30.01.2016, declared that the laboratory assistants recruited on or after 03.02.2006 .2006 are 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' treated to be as homogenous within the cadre for stepping up of pay exchequer and although technical/assistants laboratory assistants sistants joined on or before 31 31.03.2006 shall be allowed stepping up of pay at par with their juniors in respective cadre joined DoS or ISRO on or after 01.04.2006. Therefore, in view of the above a ove facts, the aforesaid tho those se persons who had filed aforesaid OA No.228/2015 had withdrawn as their grievances aforesaid were redressed to the clarification amendment issued by the Department of Space.

5.4 The applicants contended that they did not have any grievance against the aforesaid up gradation of pay to the six persons who have joined in pursuance to the e employment mployment advertisement SAC:04/2004 along with the applicants at par that the persons who had joined after 01.04.2006 however they had the grievances that the aforesaid six persons who had recruited from the same advertisement as the applicants herein were put at the advantageous position by exercising option for existing career career /Engineering/Technical cadre, iin view of the provisions contained

in OM issued by Department of Space on 03.02.2006 and 08.09.2006 whereas there was no reason as to why the same option should not have been extended to the applicants herein who were also selected and appointed through the same advertisement who could not joined service of SAC advertisement before 01.04.2006 due to want of pre-- requisite equisite formalities like police verification and character verification from the respective places.

5.5 They had also referred the stand taken by the Department of Space in the aforesaid previous OA No.228/2015 filed before this his Tribunal for stepping up of pay of those who had joined before 01.04.2006 and those who had joined on 01.04.2006 on the principle of treating both the groups as one homogenous 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' group and that is why they should d be given option to exercise the existing career path for their promotion.

5.6 Being aggrieved by the above decision, the applicants herein submitted their formal representation dated 20.02.2010 and 01.03.2016, 09.02.2016 to the Director, SAC, Ahmedabad through proper channel wherein the said applicants herein had requested the said authority to consider their career path at par with the colleagues who had joined before 01.04.2006 in consonance to their stand that they are one homogenous group group. However, there was neither reply from the SAC Ahmedabad hmedabad nor oral inquiry from the off officer except information that their application had been forwarded to DoS HQ which would take the final call on the issue raised by the applicants herein.

5.7 Therefore the applicants submitted that they had approached this Tribunal to redress their grievance issued vide Memorandum E/19012/2/2006 E/19012/2/2006 dated 03.02.2006 and Memo Memorandum E/19012/2006-SEC/IV SEC/IV dated 08.09.2006 had discriminatory between Technical Assistants B (Elec) joined before 01.04.2006 o and those who joined on or after 01.04.2006 although they had been recruited selected and appointed through the same advertisement viz SAC advertisement No.04/2004.

04/2004. Reply from the Department of Space Application, Ahmedabad vide dated 11.04.2005 was irrational, illegal whereby they had been informed that the stand taken by the whereby Department in the reply filed in the previous OA No.228/2015 was only for limited purpose and stepping up of pay and not for other purposes of accordingly, representation was disposed of.

5.8 It is also relevant that during the pendency of OA, the Department of Space and SAC, Ahmedabad had taken decision on their representation which they challenged the very 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' propriety legality and incidental incidental violation of the decision by respondent No.2 through communication dated 11.04.2005.

5.9 That the applicants herein and their colleagues had appointed as Technical Assistants ""B"" (Electronics) in pursuance of advertisement No.SAC:04/2004 and joined prior to 01.04.2006 and after 01.04.2006 depending upon completion of pre-requesting pre of joining of the services which was beyond the control of applicants herein. Therefore, as pe perr the procedure laid down in para 6.1 to 6.5 of the impugned OM dated 03.02.2006 of those of para 6.2 to 6.4 of the OM dated 08.09.2006 of Department of Space are discriminatory in the sense that it stipulates different future

career progression both for the he officers who had joined prior to 01.04.2006 and provided slower career progress path for those officer those who had joined after 01.04.2006 although they had been selected recruited and appointed on the basis of same advertisement No.SAC:04/2004 SAC:04/2004 which is discrimination and violation of basic provisions of Articles 14,16 and 19 of the Constitution of India.

6. Heard both the learned counsel for the parties at length and perused the material on record, especially OM dated 03.02.2006 and 09.08.2006. It is an admitted fact that the applicant herein along with other candidates were appointed on the basis of advertisement No.SAC 04/2004.

7. It is also clarified and submitted by the respondent that ISRO/DoS has ha given certain special autonomy to manage their personnel establishment like recruitment, promotion and fixing their progressive career path.

8. It is also evident from the record and guidelines that the selection and promotion in the DoS and ISRO is squarely on the basis of merit cum selection. There is no seniority list in the organization. ISRO being sensitive organization therefore when it originates the recruitment process of their cadre it is 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' mandatory to get character and antecedent verification of selected candidates before they are allowed to join.

9. It is reported by the respondent that a committee was constituted under the Chairmanship of Dr.B.N. Suresh Director Director,, who addressed the issue of the slow growth and career progression for the candidates who were selected as Technical/Scientific/Library Assistant from the 1st class Diploma holder. After examination, the report of the committee, the DoS had examined and accepted the recommendation and issued two OMs dated 03.02.2006 and 08.09.2006 and a according cording to the Para 6.2 and 6.4 (a), (b) & (c) and OM dated 08.09.2006 issued for clarification which are reproduced hereunder for clarify the OM dated 03.02.2006:

61 The induction of Scientific/Technical Assistant 'B' is at present made in the grade of Rs.5000-8000. The career progression path for the Diploma /B.Sc.

holders shall be as under with the induction grade enhanced to Rs.5500-9000 9000 from the existing Rs.5000- 8000:

Qualifica Scientific/ Scientific/ Scientific/ Scientific/ Scientific/ Scientific/ tion
Technical Technical Technical Technical Technical Technical Assistant 'B Assistant
'C' Officer 'D' Officer 'E' Officer 'F' Officer 'SG' (5500 -9000) (6500 -9000) (10000
-15200) (12000 -16500) (14300 -18300) Rs.16400- 20000) Diploma Years Years
Years Years Years Engineer ing/ B.Sc 6.2 The existing Scientific/Technical Assistants
may be given an option to switch over to the newly created career path given above.
Those who do not opt for the newly created career path will continue in the existing
stream. Those who fail to exercise the option before efore the due date will be deem
deemed to have opted for the newly created career path.

6.3 All the Scientific/Technical Assistant 'B' who opt to switch over to the newly created career path or fail to exercise the option before the due date may be placed in the grade of Rs.5500-9000 from a prospective date.

Fixation of pay in such cases may be done in terms of FR 23 and FR 22 (1)(a) (2).

2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' OM dated 08.09.2006 "6.2 6.2 All the existing Technical/Scientific Assistant 'B' in the scale of Rs.5000-8000 as on 31.03.2006, who have been inducted into the stream either through Direct Recruitment or promoted through special review process on acquiring higher qualifications, will be placed in the higher scale of Rs.5500-9000 w.e.f. 01.04.2006. Fixation of pay in such cases may be done in terms of FR 23 and FR 22(1)(A)(2). 6.4 After placement of Technical / Scientific Assistant 'B' and 'C' in the respective higher scales as indicated in para 6.2 and 6.3 their next DPC will be normalized as under:

under:-

(a) Technical/Scientific Assistant 'B' will be eligible for next promotion to the post of Technical Assistant 'C' as per the existing residency period and existing procedures.

Their subsequent promotion will be as per the procedure detailed in succeeding paragraphs.

(b) Technical/Scientific Assistant 'C' on completion of 4 years in their posts, will be given one time option to select either Scientists/Engineers stream or Technical Officer stream. The DPC process will be initiated as per their options.

(c) The above procedure will not be applicable for the new recruits inducted on or after 01.04.2006.

10. Mere perusal of the above provision, it is clear that the provisions as stated hereinabove in the two OM viz. 03.02.2006 and 08.09.2006. They have created two classes of officers as far as career progression and responsibilities are concerned in the Space Application Centre, Ahmedabad ISRO, DoS.

11. The argument of the respondent is not acceptable that the provision of the aforesaid OM dated 03.02.2006 were not applicable to the Scientific or Technical Assistant who had joined after 01.04.2006 as it was available to the candidates Assistant/Scientific/ Technical Assistant who had joined on or before 31.03.2006. It is explicitly clear that the aforesaid Office Memorandum was issued on 03.02.2006, however, it was 31.03.2006.

03.2006. Therefore, technical/Scientific Assistant who were joined between 03.02.2006 and 31.03.2006 were given benefits of the aforesaid memorandum although they have joined after the order. On the corollary, in the present case, why similar benefits had not been extended to the

candidates who had joined in April and June 2006?

12. The argument of the respondent is agreeable to the extent that the Government had to decide the cutoff date for implementation of the benefits with reference to pay fixation GPF implementation etc.. In this regard, it is an admitted practice that the Government of India, although it is well within the competency and jurisdiction to decide the cutoff date for extending the benefit of revised pay/pension/GPS etc. etc., does not implement a policy that discriminates between the same class of employees recruited through the same process. Moreover, as a welfare measure, it is the duty of the Government of India to ensure that there should not be any discrimination as a result of fixation of the cutoff date for extending the particular benefits.

13. If we refer the example which had been given in the reply by respondents in support of the claim of employee for change from Old Pension Scheme (hereinafter referred to as 'OPS') to National Pension Scheme (hereinafter referred to as NPS).. The change of the pension scheme from OPS to NPS, it is accepted fact, as stated by the respondent, that benefits of OPS were given to those employees who were on the roll of the Government on 31.12.2004 and similarly benefits of NPS had been given to those employees who were recruited on/after 01.01.2004. Subsequently, number of representations from employees/organizations were received by the Government of India as the issue of fixation of cutoff date for change of 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' benefits from OPS to NPS that were resulted into discrimination to the employees whose recruitment process were started before 31.12.2003, however, they could not join because of the pre-requisite formality for joining of services and consequently joined after 01.01.2004, inspite of the fact that they have recruited through the same process.

14. By taking into consideration the discrimination criteria for same class of employees, employees the Government of India vide letter dated 31.08.2023 had given one time option to exercise for switching over from NPS to OPS pension schemes specially to those employees who had joined after 01.01.2004 although their recruitment process had started before 31.12.2003.

Therefore the argument of the respondent is not acceptable that the cutoff date which was fixed for the NPS and OPS were strictly implemented and there were two Groups and different beneficiaries under NPS and OPS pension schemes although they were recruited from the same selection process which is contrary to the decision taken by the Government of India as it is evident from aforesaid guidelines that those benefits were also extended to the employees whose selection process had been started before 31.12.2003, however, they could join after 01.01.2004 i.e., cutoff date fixed for implementation of NPS Scheme.

15. Similarly, in the present circumstances also, it is noteworthy that a welfare state should not have policy which is discriminatory to the same set of the group of officers based on their date of joining, joining meaning thereby, it provided two distinct clear career paths for the Scientific/Technical Assistants who had joined before 01.04.2006 and others who had joined on or after 01.04.2006, inspite of the facts that their recruitment inspite processes were started from the

same advertisement No.SAC:04/2004 SAC:04/2004 under same guidelines and rules of services services.

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16. It is evident from the records that delay in joining was because of the laid down procedure for police verification as the organization being sensitive which is beyond the control of the applicants herein. Therefore the arguments of the applicants on the basis of above fact is accepted that there is an element of violation of Articles 14 and 16 of the Constitution of India as it is discriminated, the same set of officers who had been recruited from the same set of rules. However they had been offered different career progression paths. The argument of the respondent is not acceptable that the up-gradation of GP from Rs.4200 to Rs.4600 Rs.4600 to the Scientific/Technical Assistants who had joined before 01.04.2006 on the basis of treating them as a homogenous group for stepping up pay process only.

17. In the present case also, if assessment of financial benefits accrued from pay is carried out on the basis of the career progression provided in the case cases two Groups s Scientific/Technical officers, then it would be clear that the pay of the applicants herein who had joined on or after 01.04.2006 shall be definitely less than the pay of the Scientific/Technical Assistants who had joined on 01.04.2006 after the residency of 3 years provided for next promotion to Scientific/Technical Assistants to those officer who joined before 31.04.2006 according to the new defined career progression path as mentioned hereinabove.

hereinabove

18. Moreover, many of the applicants herein like applicant Nos.2 & 4 are higher in merit than the many of the Technical Assistants who had joined before 01.04.2006, which is also contrary to the prevailing principles in the DoS/ISRO that their promotion and selection is based on the merit only. This fact will definitely substantiate to the merit of the applicants herein.

Therefore in view of the above, there is a force and merit to the argument in i the OA of the applicants herein and based on the 2026.02.11 SEEMA 14:51:51 SANTHOSH +05'30' Article e 14 and 16 of the Consti Constitution of India and as per prevailing policies and rules to the Government of India.

19. In view of the above, OA is allowed with the following directions:

directions:-

(i) Paras 6.1, 6.2 & 6.3 and other related paras of the he Office Memorandum No.SAC/EST/ vide dated 03.02.2006 and Paras 6.2, 6.4 (a), (b) & (c) and other related paras of OM dated 08.9.2006 No.E.19012/2/2/2006 V are quashed and set aside.

(ii) The Department is directed to conduct exercise so that the applicants herein are having same opportunities of career progression as other candidates who had joined prior to 01.04.2006 and appointed through the same advertisement and same procedure. It is made clear that we have not directed the Department of Space that they should be given some specific roles and responsibilities we leave this aspect to ISRO which is prerogative of the Department of Space/ISRO.

(iii) This exercise shall be carried out with within in a period of six months from the date of receipt of a certified copy of this Order and communicate the same to the applicants herein.

Pending MA if any, also stands disposed of accordingly. There shall be no order as to Costs.

(Dr.
Dr. Hukum Singh Meena)
Member (A)

(Jayesh V Bhairavia)
Member (J)

SKV

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